

24STLC07705 24STLC07705

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-13

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Case Number: 24STLC07705 Hearing Date: August 13, 2026 Dept: 25

HEARING DATE: Thurs., August 13, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Vanegas v. Busse et al. COMP. FILED: 10-22-24

CASE NUMBER: 24STLC07705

NOTICE: OK

PROCEEDINGS: MOTION TO SET ASIDE ENTRY OF DEFAULT AS TO PLAINTIFF'S COMPLAINT

MOVING PARTY: Defendants Anthony Busse and Meagan Busse

RESP. PARTY: None

MOTION TO SET ASIDE DEFAULT

(Code Civ. Proc., §§ 473(b), (d), 473.5)

TENTATIVE RULING:

The Court GRANTS Anthony Busse and Meagan Busse's motion to set aside the default entered against them. The May 6, 2026 default is hereby SET ASIDE AND VACATED.

The Busses are to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a) OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of August 10, 2026 [] Late [X] None

REPLY: None filed as of August 10, 2026 [] Late [X] None

ANALYSIS:

Carlos Manuel Vanegas sued Anthony Busse and Meagan Busse. The Busses failed to respond, and Vanegas obtained a default against them in May 2026. The Busses now move to have the default set aside under Code of Civil Procedure section 473, subdivision (b), subdivision (d), or section 473.5.

Given that the Busses primarily argue that service of process was invalid, the Court starts with Code of Civil Procedure section 473, subdivision (d).

In July 2025, a registered process server declared that after three attempts at serving Anthony and Meagan personally, he left copies of the summons, complaint, and various other case-opening materials for the Busses at the address “15601 Vandorf Pl, Encino, CA 91436” with “John Doe” as grandfather/co-occupant. The server then mailed those materials to the Busses at the same address. (See Code Civ. Proc., § 415.20, subd. (b) [if a person can’t be personally served with reasonable diligence, he can be served in this manner].) The process server’s declaration is prima facie evidence that Vanegas served the Busses. (Evid. Code, § 647; see *Lee v. Yan* (2025) 115 Cal.App.5th 975, 978.) That places the burden on the Busses to offer evidence to the contrary. (*Palm Property Investments, LLC v. Yadegar* (2011) 194 Cal.App.4th 1419, 1428.)

The Busses contend that the John Doe was not a “competent member of the household” as required by Code of Civil Procedure section 415.20, subdivision (b). They argue that there was no co-occupant residing at the property and no person present with authority to accept service on their behalf: The person present at the residence on the date of alleged service was only temporarily overseeing the home while they were on vacation. Anthony attests that on the date of the attempted substitute service, he and Meagan were on vacation, his father-in-law was temporarily overseeing the residence, and that his father-in-law is not an occupant of the residence. Additionally, father-in-law Steve Rojas attests that he was temporarily overseeing the Busses residence on the alleged service date, is not an occupant of the residence, and that “no copies of any documents, including the Summons or Complaint were left at the residence or within my possession.” Anthony also attests that he did not receive any documents in the mail. Furthermore, the process server’s proofs of service indicate that he was informed the Busses were “not home [as they were] on vacation,” two days before substitute service was purportedly effected.

These above facts demonstrate that substitute service was invalid as Rojas, “John Doe,” was not a “competent member of the [Busse] household” and no documents were mailed as required by Code of Civil Procedure section 415.20, subdivision (b). Vanegas did not file an opposition arguing otherwise. Accordingly, the Busses are entitled to relief under Code of Civil Procedure section 473, subdivision (d) for invalid service of process.

Given the above disposition, the Court need not address the Busses’ requests for relief under Code of Civil Procedure section 473, subdivision (b) or section 473.5.

Thus, the Court GRANTS the Busses motion. The May 6, 2026 default is hereby SET ASIDE AND VACATED. The Court ORDERS Venegas to SHOW CAUSE, on Thursday, October 15, 2026 at 9:30 a.m., in Department 25 of the Spring Street Courthouse, why service has not been effected on the Busses. Filing of proper proofs of service will discharge this order.

The Busses are to give notice.